

25LBCV02758 25LBCV02758

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Case Number: 25LBCV02758 Hearing Date: August 18, 2026 Dept: S28

BACKGROUND

On

October 3, 2025, Plaintiff Bradely Payne filed this lemon law matter against Defendant Hyundai Motor America.

On

May 19, 2026, Plaintiff filed a notice of settlement of the entire case.

On

June 22, 2026, Plaintiff filed the instant motion for attorney's fees and a memorandum of costs.

On

August 5, 2026, Defendant filed opposition.

As

of August 17, 2026, Plaintiff has not filed a reply.

DISCUSSION

Applicable

Law

A prevailing party is entitled to reasonable attorney fees in addition to other costs.

(Code Civ Proc. § 1033.5(a)(10).) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a

defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ Proc. § 1032(a)(4).) In all other circumstances, the “prevailing party” shall be as determined by the court. (Ibid.)

The fee setting inquiry ordinarily begins with the “lodestar,” i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal. 4th 1084, 1095.) “The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Dev. Corp. (2008) 162 Cal.App.4th 770, 774.)

In determining whether to adjust the lodestar figure, the court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

The prevailing party bears the burden of proof and the amount is left to the trial court’s sound discretion. (Christian Research Institute v. Alnor (2008) 165 Cal. App. 4th 1315, 1320.) A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.)

Analysis

A. Entitlement to Attorney’s Fees

The parties have settled this matter via an offer made by Defendant pursuant to Code Civ. Proc. § 998 (“998 offer”). (Shayesteh Decl., Ex. B.) Per the 998 offer, Defendant has agreed to pay Plaintiff \$54,919.08. (Ibid.) The parties agreed that Plaintiff is the prevailing party in this matter and that Defendant will pay Plaintiff’s attorneys’ fees, costs, and expenses as awarded by this Court by way of noticed motion. (Ibid.)

Plaintiff now seeks a total award of \$42,180.18, comprised of the following: (1) \$24,564.00 in incurred attorney's fees (55.2 hours × \$445/hour); (2) \$27.00 in paralegal fees (0.2 hours × \$135/hour); (3) \$3,115.00 in reasonably anticipated attorney's fees to review Defendant's opposition, prepare the reply, and attend the hearing (7.0 hours × \$445/hour); (4) a 1.5 lodestar multiplier reflecting the contingent risk, the contested petition to compel arbitration, the skill required, and the excellent result obtained, enhancing the \$27,706.00 lodestar to \$41,559.00; and (5) \$621.18 in costs and expenses. (Mot., p. 2.) As the prevailing party, Plaintiff is entitled to reasonable fees and costs. (Civ. Code § 1794(d).).

B. Reasonableness

"Even after determining that a party is entitled to fees because it 'prevailed,' the trial court must still determine what amount of fees would be 'reasonable' in light of the relative extent or degree of the party's success in obtaining the results sought." (Sokolow v. County of San Mateo (1989) 213 Cal.App.3d 231, 247.) As to Song-Beverly warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

"The Song-Beverly Act's attorney fee provision ""requires the trial court to make an initial determination of the

actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) Under the Song-Beverly Act, the question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

i.

Fees Incurred After Honda's First 998 Offer

“If

an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their post-offer costs and shall pay the defendant's costs from the time of the offer.” (Code Civ. Proc., § 998, subd.

(c)(l).)

Defendant served a 998 offer of \$62,630.25 on December 18, 2025, and later offered \$80,000.00, both exceeding the \$54,919.08 Plaintiff ultimately accepted. (Bibbes Decl. ¶¶ 6-8.) Defendant argues that under section 998, Plaintiff cannot recover the fees and costs incurred after Defendant's first 998 offer of \$62,630.25 on December 18, 2025, which Plaintiff declined, because Plaintiff failed to obtain a more favorable result. (Opp., p. 5.) Alternatively, Defendant contends that because the post-offer work produced a result no more favorable than Defendant's standing offers, it was not "reasonably incurred" within the meaning of Civil Code section 1794, subdivision (d), and should be denied or sharply reduced. (Ibid.)

Here, Defendant incorrectly interprets section 998 to limit attorney's fees post-offer, but the statute refers only to post-offer costs. Plaintiff's attorney's fees will not be reduced on this basis.

However, as to whether the post-offer work was reasonably incurred, Plaintiff makes no argument as he did

not file a Reply. The Court will inquire with Plaintiff's Counsel at the hearing as to why these post-offer fees should not be reduced.

ii. Hourly Rate

"In determining hourly rates, the court must look to the 'prevailing market rates in the relevant community.'" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 100.) In making this determination, "[t]he court may rely on its own knowledge and familiarity with the legal market." (Ibid.)

Defendant

next argues that Plaintiff's counsel's rate of \$445 is unreasonably high for his experience level, as he was admitted to the bar in June of 2025, and should thus be adjusted to \$350 per Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 256. Jacob Shayesteh is the principal attorney of Wynn Law Group, APC.

Here,
the Court finds that counsel's hourly rate is reasonable given his experience of over a year as the principal attorney at his firm where he handles primarily Song-Beverly claims, and the locality of the services provided.

iii.

Fees for Reviewing Opposition and Preparing
Reply

Plaintiff's counsel seeks \$3,115.00 in anticipated attorney's fees to review Defendant's opposition, prepare the reply, and attend the hearing (7.0 hours × \$445/hour). Since Plaintiff did not file a reply, these fees will be reduced to \$445 for 1 hour to attend the hearing.

iv.

Disputed Entries

Defendant

further disputes the following billing entries:

1. 9.3

hours in relation to preparing, drafting, and filing the Complaint

Defendant

contends that this time billed regarding the Complaint should be reduced to no more than 4.5 hours because the billing entries are duplicative, overly padded, and inefficient.

Here,

the Court agrees that this time is excessive for what was likely drafting a form Complaint for nearly identical Song-Beverly claims. A trial court's referencing counsel's use of templates, as one part of reasoning that a reduced number of attorneys was needed in a case, was affirmed. (See *Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform those templates to the actual facts of this case."].) Further, the Complaint is only five pages long. Thus, these hours are reduced to 4.5 hours.

2. 3.6

hours to draft discovery

Defendant

argues that Plaintiff

improperly served discovery requests while a Motion to Compel Arbitration was pending and the action was stayed. The Court agrees that this time was not necessarily incurred as the discovery was never used and it was not reasonable to prepare it at that time. Thus, these hours will be reduced.

3. 3.5

hours for conducting a "thorough review" of the Motion to Compel Arbitration and 11.5 hours to prepare an Opposition to HMA's Motion to Compel Arbitration

Defendant argues that for the experience level Plaintiff's

Counsel claims, 11.5 in preparation of a simple eight-page Opposition is excessive. Defendant contends that Plaintiff's counsel should have the knowledge, and templates for preparing such Oppositions since Plaintiff's counsel "specializes" in warranty litigation. (Shayesteh Decl. ¶ 11.)

The

Court agrees that these hours are excessive. Thus, these hours are reduced to 4 hours.

4. Clerical or Secretarial Tasks

Defendant

argues that although counsel represents under oath that clerical work was billed at a reduced \$135 paralegal rate, the records reflect only 0.2 hours of paralegal time in the entire case while the remainder of the bill is replete with clerical entries billed at the full \$445 attorney rate. (Bibbes Decl. ¶ 10.) Defendant disputes the following entries billed at the attorney rate as clerical: transmitting the client's payoff quote (.20), payment history (.10), W-9 and vehicle registration to opposing counsel (.10); reviewing one-line status emails (.10); and numerous 0.1-hour entries for routine client text messages and updates (0.50).

Here,
the Court agrees that time spent on these tasks should have been handled by a paralegal or secretarial staff with a lower hourly rate. Thus, these entries should be billed at the reduced \$135 paralegal rate.

v.
Multiplier

The
Court will not award any fee multiplier. Plaintiff's counsel did not obtain a more favorable result than the two initial 998 offers, and the Court does not believe this matter involved any complex or novel legal issues warranting any multiplier. Indeed, Plaintiff's counsel litigates dozens of matters nearly identical to this one, often using templates and generally abiding by the same litigation strategy.

vi.
Costs

Plaintiff
requests costs in this motion. However, costs are not to be requested by a fee

motion but rather a memorandum of costs. (Cal Rules of Court, rule 3.1700(a)(1).) Should Defendant have failed to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)

vii. Total
Reduction

Overall,
the Court makes reductions totaling 19.4 hours at \$445 per hour (\$8,633) and a total of one hour reduced from the attorney rate of \$445 to the paralegal rate of \$135 (\$310), for a total reduction of \$8,943. The Court also reduces the amount Plaintiff seeks for reviewing the opposition to this motion, filing a reply, and attending the hearing by 6 hours totaling \$2,670. Thus, Plaintiff is entitled to the reduced amount of \$16,093.00 (\$27,706-\$11,613).

This amount may be further reduced
after the hearing depending on whether Plaintiff can prove-up the reasonableness of the fees incurred after Plaintiff declined Defendant's initial 998 offer of \$62,630.25 on December 18, 2025 and then failed to obtain a more favorable result.

CONCLUSION

Plaintiff's Motion for Attorney's Fees is GRANTED in part in the reduced amount of \$16,093.00. This amount may be further reduced after the Court's inquiry at the hearing regarding the reasonableness of post-offer fees.

Plaintiff filed a memorandum of costs. Should Defendant fail to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)